

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S SUPPLEMENTAL MEMORANDUM: COUNT 11 AS
REPRESENTATIVE; NON-READING OF PLEADINGS AND
COUNTERCLAIMS; AND REQUEST FOR RECORD-CITED FINDINGS
AND INDIGENCY PROTECTIONS**

Defendant submits this supplemental memorandum to aid resolution of pending post-judgment motions and to align the Final Judgment with the record and with basic access-to-courts principles.

I. INTRODUCTION — COUNT 11 USED AS REPRESENTATIVE

For clarity and judicial economy, Defendant expressly takes Count 11 as a representative example of what pervades Counts 1–10. Count 11—domestic and straightforward—orders “turnover of domains/passwords/data” without engaging the record materials that, since 2018, repeatedly established non-ownership of certain named domains and the absence of competent proof of Plaintiffs’ title. Given the simplicity of the issue and the

order's silence on those dispositive filings, the only reasonable conclusion is that the Defendant's Count 11 submissions were not read or considered. There is no basis to believe that the materially more complex filings on Counts 1–10 were read or analyzed any more closely.

II. SYSTEMIC NON-ENGAGEMENT: PLEADINGS, OBJECTIONS, AND COUNTERCLAIMS

Across Counts 1–10, the Final Judgment and Plaintiffs' proposed order contain internal inconsistencies and conclusions untethered to exhibits or sworn declarations. Dispositive defenses (including PX-15 foundation and the 83.42% error; the two-pool damages framework and setoffs; periodization at 10/27/2010 and 12/13/2012; and a prejudgment-interest schedule with dates/rates/method) are not discussed. Counterclaims were ignored without a word of analysis. Several of Defendant's pleadings were struck or disregarded without prior discussion of their contents. On this record, the only fair inference is that these filings were not read at all before entry of the Final Judgment.

III. VOLUME/TIME CONTEXT (EXPLANATORY, NOT ACCUSATORY)

Defendant recognizes the unusual volume: approximately 3,000 pages

filed since 2018. At ordinary commercial rates and conservative review speeds, a comprehensive attorney review would exceed \$75,000 in time alone; a court-side review would plausibly require on the order of two months of focused staff time. The docket pressure is real (this action was numbered 543 by early April 2018; the related action was numbered 1,021 by mid-August 2020). Those realities may explain how dispositive submissions went unread. They do not change the governing standards: orders must rest on competent proof and must describe in reasonable detail the act or acts required, with an express present-ability finding before coercive enforcement.

IV. ACCESS-TO-COURTS AND INDIGENCY (IGNORED ON THIS RECORD)

Defendant's sworn demonstrations of indigency and impossibility were not addressed on the merits. The record reflects: (i) contemporaneous seizures by a major DeepGulf shareholder, with the complicity of its chairman, leaving Defendant with access to only approximately \$600 at any given time; (ii) a serious hernia condition, documented by contemporaneous photographs filed on the docket; (iii) orders requiring Defendant to attend a \$900-per-party mediation he could not afford; and (iv) orders requiring in-person court attendance approximately 5,000 miles from

his home despite the medical condition and near-absolute lack of funds. When Defendant could not comply, he was defaulted (and/or threatened with contempt), and his motions and counter-claims were denied en masse—without discussion of the indigency record, the medical documentation, or an express finding of present ability to perform any specific act.

On these facts, it is implausible that the Court would knowingly impose obligations that the record shows Defendant could not fund or physically perform. The more likely explanation—consistent with ordinary judicial practice and the absence of any analysis in the orders—is that the pertinent filings were not read or considered. That conclusion also aligns with the pattern elsewhere in this case: lengthy, evidence-backed pleadings and counter-claims were struck or rejected without prior engagement with their contents. Basic access-to-courts principles require that the indigency and impossibility showings be addressed on the record, and that no coercive measure issue absent an express present-ability finding tied to a specific, lawful act.

Requested relief (indigency/access): enter written findings on indigency based on the existing record; tailor any further directives to Defendant's

present ability; refrain from coercive enforcement absent an express present-ability finding; and clarify that no order requires disclosure of hosting/server/registrar/e-mail passwords, credentials, payment methods, or access to unrelated accounts or data.

V. REQUESTED RELIEF (NARROW, RULE-BASED, AND IMMEDIATE)

Defendant respectfully asks the Court to:

1. **Acknowledge and correct non-reading:** Enter a short order stating whether the Court read and considered Defendant's identified filings on Count 11 and on Counts 1–10.
 - a. If not read, vacate or conform the affected portions of the Final Judgment and set a short schedule for targeted review/argument.
 - b. If the Court contends they were read, identify the specific page/line citations the Court relied upon for (i) Plaintiffs' title claims, (ii) PX-15 findings, (iii) periodization, (iv) the two-pool damages split and \$696,000 setoffs, and (v) the prejudgment-interest figure \$290,461.73 (with dates/rates/method).

2. **Require record-cited findings:** Order Plaintiffs, within 10 days, to file a Record Basis Statement for each challenged finding in Counts 1–10 (and Count 11 if reached) listing: (i) the precise finding language; (ii) page/line record citations; and (iii) the exhibit(s) relied on. Any finding lacking competent citations should be stricken or conformed.
3. **Restore and hear counterclaims:** Set the ignored counterclaims for adjudication or, at minimum, enter written findings addressing each pleaded counterclaim and the ground(s) for rejection, with record citations.
4. **Indigency protections:**
 - a. Enter written findings on indigency based on the existing sworn record;
 - b. Tailor any further orders to Defendant's present ability, and refrain from coercive measures absent an express present-ability finding tied to a specific, lawful act; and
 - c. Clarify that no order requires disclosure of hosting/server/registrar/e-mail passwords, credentials, payment methods, or access to unrelated accounts or data.

5. **Interest schedule or strike:** Require the filing of a prejudgment-interest schedule (dates, rates, and method) within a short deadline; strike the lump-sum add-on if none is provided.
6. **PX-15 and derivative findings:** Rule on the PX-15 foundation/late disclosure and 83.42% double-count issue; vacate any derivative findings if PX-15 is excluded or corrected.

VI. PRESERVATION AND SCOPE

Defendant uses Count 11 only as a representative example of systemic non-engagement. Nothing herein waives any objection or remedy as to any count, claim, or motion. The requested relief is modest: require record-cited findings, restore the counterclaims to a posture where they can be heard, correct or strike what lacks support, and protect basic access-to-courts rights in light of sworn indigency.

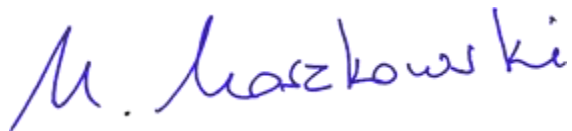
Respectfully submitted this 11th day of September, 2025

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CERTIFICATE OF SERVICE

I hereby certify that, on this 11th day of September, 2025, a copy of the foregoing has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Maczkowski